IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an application for Mandates in the nature of *Writs of Certiorari, Prohibition,* and *Mandamus* under and in terms of Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

CA/WRT/0689/2024

1. Electro Plastics (Private) Limited,
   Formerly Electro Plastics Limited,
   No. 1161, Maradana Road,
   Colombo 08.

2. Electro (Overseas Trading) (Private) Limited,
   Formerly Electro (Overseas Trading) Limited,
   No. 945, Kotte Road,
   Rajagiriya.

   Both Presently
   Unit 24/1,
   320, Union Place,
   Colombo 02.

3. R. B. Wethtasinghe,
   No. 300,
   Sri Jayawardenapura Mawatha, Welikada,
   Rajagiriya.

   And
   Apartment 23/1A, On 320 Residence,
   Union Place, Colombo 02.

Presently
No 01, Rue Eugune Delacroix,
Apart 08 72100 lemans,
France.

The 3rd Petitioner appearing by and through by his Power of Attorney holder Ireha Chandra Mediwake Wethasinghe of
No 21/6, Strafford Tower, Havelock City, Colombo 06.

PETITONERS

Vs.

1. W. R. A. N. S. Wijayasinghe,
   Former Registrar General,
   Registrar General's Department,
   No. 234/A3,
   Denzil Kobbekaduwa Mawatha,
   Battaramulla.

   Mrs Sasidevi Jaladeepan,
   Registrar General,
   Registrar General's Department,
   No. 234/A3,
   Denzil Kobbekaduwa Mawatha,
   Battaramulla.

2. H. R. M. C. Pushpakantha,
   Additional Land Registrar,
   Office of Land Registry,
   Delkanda- Nugegoda.

3. R.M.N.N. Karunaratne,
   Former Additional Land Registrar,
   Office of Land Registry,
   Delkanda- Nugegoda.

4. Kanagasabai Ranjan,
   No. 153/2 6/6,
   Elvitigala Mawatha, Colombo 08.

5. H. Dayaratne,
   No. 474/1/A,
   Wathurapatha.

RESPONDENTS

Before : B. Sasi Mahendran, J.
Adithya Patabendige, J.

Counsel : Chanaka Weerasekara with Praveen De Silva instructed by D.M. Swaminathan Associates for the Petitioners.
Y. Selvanathan, SC for the 1st - 3rd Respondents.
A. Dharmaratne with Upendra Walgenpaya and Hasitha Ratnayake instructed by C.D. Kulathunga for the 5th Respondent.
Maithri Gunaratne, PC with Chan Godakumbura instructed by Neelakandan & Neelakandan for the 4th Respondent.

Argued on : 10.09.2026

Written Submission

Tendered on : 13.10.2026 by the 1st - 3rd Petitioners
15.10.2026 by the 5th Respondent

Decided on : 03.11.2026

Adithya Patabendige, J.

The Petitioners have invoked the writ jurisdiction of this Court under Article 140 of the Constitution, seeking mandates in the nature of *writs of certiorari* to quash the decisions of the 3rd Respondent to register three caveats lodged by the 4th and 5th Respondents in respect of two allotments of land originally owned by the 1st and 2nd Petitioners. The State acquired the said lands under Section 38 of the Land Acquisition Act by an Order published in Gazette Extraordinary No. 2215/24 dated 17th February 2021 and subsequently divested them under Section 39A of the said Act by an Order published in Gazette Extraordinary No. 2387/02 dated 05th June 2024. The Petitioners contend that the registration of the impugned caveats was unlawful, as the lands had already vested absolutely in the State at the time of their registration, and that the 4th and 5th Respondents had failed to establish any right, title or interest in the said lands sufficient to justify the registration of the caveats. Accordingly, the Petitioners seek to quash the impugned decisions and to expunge the corresponding entries from the Land Registry.

The 1st, 2nd and 3rd Respondents have filed their Statement of Objections, denying the allegations of illegality made by the Petitioners. They admit that the caveats marked **P9**, **P10** and **P14** were received and registered, and acknowledge the relevant land registry entries. They further accept the divesting order marked **P16** and the statutory provisions contained in Section 39A (4) of the Land Acquisition Act. However, they deny the Petitioners' allegations concerning the unlawfulness of the registration of the caveats and maintain their opposition to the relief sought. Accordingly, they seek the dismissal of the application with costs.

In his Limited Statement of Objections, the 4th Respondent raises several preliminary objections to the maintainability of this application. In particular, he contends that the Petitioners have suppressed material facts relating to two previous proceedings, namely, District Court of Colombo Case Nos. DML/00172/18 and DML/00179/18, in which orders dated 05th January 2024 recognized his entitlement to register caveats in respect of the lands concerned. The said orders have been produced and marked as **A3** and **A4**, respectively. He further states that they have not been challenged by way of appeal or revision. The 4th Respondent also raises objections based on the availability of an alternative statutory remedy, laches, and the Petitioners' failure to act *uberrima fide*. He maintains that the caveats marked **P9** and **P10** were lawfully registered under the Registration of Documents Ordinance and that the subsequent divesting of the lands under Section 39A of the Land Acquisition Act does not

invalidate his claimed rights and interests. Accordingly, he seeks the dismissal of the application.

The 5th Respondent, in his Statement of Objections, raises several preliminary objections to the maintainability of this application. He contends that the Petitioners have an adequate alternative remedy under Section 33(2) of the Registration of Documents Ordinance to seek cancellation of the caveats before the District Court, and that the application is also liable to be dismissed on the grounds of laches and failure to produce certified copies of the relevant documents. On the merits, the 5th Respondent maintains that the caveat marked **P14** was lawfully registered to safeguard his rights and interests arising from a loan agreement dated 28th August 2017, under which a sum of Rs. 10 million was advanced to an individual associated with the 2nd Petitioner Company. He further contends that the agreement restricted the alienation of the company's assets and that the caveat was registered after the borrower failed to repay the loan. Accordingly, he seeks the dismissal of the application.

It must be emphasised at the outset that the dispute before this Court is confined to the legality of the decisions of the 3rd Respondent to register the caveats marked **P9**, **P10** and **P14**. This Court is not called upon to determine the ownership of the lands or to adjudicate upon the substantive rights claimed by the 4th and 5th Respondents. The acquisition of the lands by the State and their subsequent divesting are relevant only to the extent that those circumstances bear upon the legality of the impugned registrations. The principal question is whether the 3rd Respondent acted within the powers conferred by Section 32 of the Registration of Documents Ordinance, as amended by Act No. 32 of 2022, when registering the said caveats.

Issues for Determination

Having considered the Petition, the Statements of Objections and the submissions advanced on behalf of the parties, the following issues arise for determination.

- Whether the Petitioners' failure to disclose the previous proceedings in District Court of Colombo Case Nos. DML/00172/18 and DML/00179/18, and the orders made therein on 05th January 2024, constitutes suppression of material facts disentitling them to discretionary relief.

- Whether the availability of a statutory remedy before the District Court under Section 33(2) of the Registration of Documents Ordinance precludes, or otherwise warrants the refusal of, relief under Article 140 of the Constitution.

- Whether the Petitioners are guilty of laches in invoking the writ jurisdiction of this Court.

- Whether the 4th and 5th Respondents possessed, or claimed to possess, a right, title or interest in the lands sufficient to justify the registration of the caveats under Section 32(1) of the Registration of Documents Ordinance, as amended by Act No. 32 of 2022.

- Whether the acquisition of the lands by the State and their subsequent divesting under Section 39A of the Land Acquisition Act affect the legality of the impugned registrations.

- Whether any effective relief remains available to the Petitioners, having regard to the expiry of the statutory period of two years prescribed for caveats under Section 32(3) of the Registration of Documents Ordinance.

Relevant Statutory Provisions

Section 32 of the Registration of Documents Ordinance, as amended by the Registration of Documents (Amendment) Act, No. 32 of 2022, governs the registration of caveats.

Section 32(1)(a) permits a person who has a right, title or interest, or claims to have a right, title or interest, in land to present a caveat for registration.

Section 32(1)(b) prescribes the documents and particulars required to accompany a caveat, including an affidavit of the caveator and a certificate issued by an Attorney-at-Law substantiating the right, title or interest claimed.

Section 32(1)(c) identifies certain categories of persons who may qualify as caveators and provides an inclusive definition of an interest in land.

Significantly, the amended provision does not limit the right to lodge a caveat to a person who has already established title to the land. It expressly extends that right to a person who claims to have a right, title or interest therein. Nevertheless, such a claim must bear a legally

recognisable connection to the land concerned. The mere assertion of a claim cannot dispense with the statutory requirements governing the registration of a caveat.

Section 32(1A) requires the Registrar, upon being satisfied that the prescribed documents and information have been furnished, to acknowledge receipt of the caveat and record the prescribed particulars.

Section 32(3) provides that a caveat shall remain in force for a maximum period of two years.

Section 33(2) empowers the District Court, upon an application by a person interested in property affected by the registration of a caveat, to order its cancellation where the Court is satisfied that the registration was or has become unnecessary. Such an application may be made in a suit or summarily under Chapter XXIV of the Civil Procedure Code.

These provisions must be considered in determining both the legality of the impugned registrations and the appropriateness of exercising the discretionary writ jurisdiction of this Court.

Preliminary Objection Relating to the Suppression of Material Facts

The 4th Respondent contends that the Petitioners have failed to disclose two previous proceedings before the District Court of Colombo, namely, Case Nos. DML/00172/18 and DML/00179/18.

According to the 4th Respondent, those proceedings were commenced by the 1st and 3rd Petitioners under Sections 33 and 34 of the Registration of Documents Ordinance, challenging two caveats previously registered by him in respect of the same lands. The said caveats were operative from 18th January 2018 to 17th January 2020.

The 4th Respondent further states that, by orders dated 05th January 2024, the learned District Judge dismissed both applications, having found that the registration of the said caveats was valid and *bona fide*. It is also his position that those orders have not been challenged by way of appeal or revision.

The Petitioners filed the present writ application on 24th October 2024, approximately nine months after the delivery of the said orders.

It is therefore necessary to consider whether the previous proceedings and orders constituted material facts that the Petitioners were required to disclose when invoking the discretionary jurisdiction of this Court.

In this regard, a distinction must be drawn between the caveats considered in the previous District Court proceedings and the caveats challenged in the present application. The former were registered in 2018, whereas the caveats marked **P9** and **P10** were registered on 15th November 2023. Accordingly, the earlier orders do not, by their mere existence, conclusively establish the legality of the subsequent registrations.

Nevertheless, the previous proceedings concerned the same lands and the claimed entitlement of the 4th Respondent to register caveats against them. Furthermore, the Petitioners had previously invoked the statutory remedy provided by the Registration of Documents Ordinance to challenge the earlier caveats.

In these circumstances, I am of the view that the Petitioners' failure to disclose the previous District Court proceedings and the orders made therein amounts to suppression of material facts. The Petitioners were parties to those proceedings and were fully aware of the orders made by the learned District Judge. Although those orders concerned earlier caveats, they were directly relevant to the present dispute, particularly as they involved the same lands and the claimed rights and interests of the 4th Respondent. The Petitioners were therefore obliged to disclose these facts when invoking this Court's discretionary writ jurisdiction. Their failure to do so constitutes a material consideration weighing against the grant of discretionary relief.

Effect of the Expiry of the Caveats

A further matter requires consideration before examining the substantive legality of the registrations.

The caveat marked **P14** was registered on 23rd February 2023, while the caveats marked **P9** and **P10** were registered on 15th November 2023.

By operation of Section 32(3) of the Registration of Documents Ordinance, the maximum statutory period of two years applicable to these caveats expired on 23rd February 2025 and 15th November 2025, respectively.

Consequently, when this application was taken up for argument on 10th September 2026, none of the three impugned caveats remained in force.

The Petitioners nevertheless maintain that the entries relating to those caveats continue to appear in the relevant registers and that their continued presence adversely affects the lands concerned.

The question, therefore, is whether the expiry of the statutory period renders the application devoid of practical utility or whether the continued existence of the entries provides a sufficient basis for granting the relief sought.

In determining this issue, it is necessary to distinguish between the expiry of the legal operation of a caveat and the continued existence of the entry in the land registry. The mere presence of such an entry does not necessarily establish that the caveat continues to have legal effect.

The Court must therefore consider whether any subsisting legal prejudice has been demonstrated and whether the relief sought would serve a practical purpose notwithstanding the expiry of the caveats.

Delay in Invoking Writ Jurisdiction

The 4th and 5th Respondents have raised a preliminary objection that the Petitioners are guilty of laches in invoking the writ jurisdiction of this Court.

The caveat marked **P14** was registered on 23rd February 2023, while the caveats marked **P9** and **P10** were registered on 15th November 2023. However, the present application was filed only on 24th October 2024, approximately twenty months after the registration of **P14** and eleven months after the registration of **P9** and **P10**.

It is well established that relief by way of *certiorari* is discretionary and that unexplained and unreasonable delay may disentitle an applicant to such relief. Nevertheless, delay must be considered in the light of the circumstances of each case, including the explanation offered by the applicant, the nature of the alleged illegality and the prejudice, if any, occasioned by the delay.

In the present application, the Petitioners seek to challenge the decisions to register the caveats. The alleged illegality, if any, arose when the impugned decisions were made. The subsequent divesting of the lands on 05th June 2024 does not, by itself, establish that the time for challenging the registration decisions should be calculated only from that date.

Furthermore, the Petitioners had previously invoked the jurisdiction of the District Court to challenge caveats registered by the 4th Respondent. The orders in those proceedings were delivered on 05th January 2024, several months before the present application was filed.

These circumstances must be considered when determining whether the Petitioners have satisfactorily explained the delay in approaching this Court.

Availability of an Alternative Statutory Remedy

The Respondents further contend that the Petitioners have an adequate alternative remedy under Section 33(2) of the Registration of Documents Ordinance.

Section 33(2) expressly empowers the District Court, upon an application by any person interested in property affected by the registration of a caveat, to order its cancellation where the Court is satisfied that the registration was or has become unnecessary. Such an application may be made either in a suit or summarily under Chapter XXIV of the Civil Procedure Code.

The statutory provision therefore establishes a specific procedure for challenging the continued registration of a caveat and obtaining its cancellation.

The existence of an alternative remedy does not, by itself, exclude the jurisdiction conferred upon this Court under Article 140 of the Constitution. Nevertheless, the availability of an adequate and effective statutory remedy is a material consideration in determining whether discretionary writ relief should be granted.

In the present case, the Petitioners seek to challenge the registration of three caveats on the basis that the 4th and 5th Respondents lacked the requisite interests in the lands. Section 33(2) provides a procedure through which the necessity of those registrations may be examined by the District Court.

It is particularly significant that the Petitioners had previously invoked that statutory procedure in respect of earlier caveats registered by the 4th Respondent. Their applications were dismissed by the learned District Judge, who found valid and *bona fide* reasons for the registrations then under consideration.

The present proceedings concern subsequent caveats and must therefore be considered independently. Nevertheless, the earlier proceedings demonstrate that the Petitioners were aware of the statutory procedure available for challenging the registration of caveats.

In these circumstances, the Petitioners must establish sufficient grounds for invoking the extraordinary writ jurisdiction of this Court notwithstanding the availability of the remedy expressly provided by Section 33(2).

The fact that the Petitioners have characterised the impugned decisions as *ultra vires* does not, without establishing the alleged illegality, necessarily justify bypassing the statutory remedy.

Furthermore, by the time this application was argued on 10th September 2026, all three caveats had ceased to be in force by operation of Section 32(3), which limits their duration to a maximum period of two years.

Having regard to the nature of the relief sought, the availability of the statutory remedy, the previous District Court proceedings and the subsequent expiry of the impugned caveats, these circumstances weigh against the exercise of the discretionary writ jurisdiction of this Court.

Conclusion

Having considered the material placed before this Court, I am of the view that the Petitioners have failed to establish sufficient grounds warranting the exercise of the extraordinary writ jurisdiction of this Court.

The principal grievance of the Petitioners concerns the registration of three caveats by the 3rd Respondent. However, Section 32(1)(a) of the Registration of Documents Ordinance, as amended by Act No. 32 of 2022, expressly permits a person who has, or claims to have, a right, title or interest in land to present a caveat for registration. The mere fact that the Petitioners dispute the rights or interests claimed by the caveators does not, by itself, establish that the Registrar acted unlawfully in registering the caveats.

Furthermore, Section 33(2) of the Ordinance provides a specific statutory remedy enabling a person interested in the property to seek cancellation of a caveat before the District Court. The Petitioners previously invoked that remedy against earlier caveats registered by the 4th Respondent. Both applications were dismissed by orders made on 05th January 2024, the learned District Judge having found valid and *bona fide* reasons for the registrations then under consideration.

Although those orders concerned earlier caveats, they are relevant to the present application, particularly in considering the availability of an alternative remedy and the Petitioners' obligation to disclose material facts when invoking discretionary relief.

The Petitioners have also approached this Court after considerable time had elapsed from the respective registration dates of the impugned caveats. Moreover, by the time this application was argued on 10th September 2026, all three caveats had ceased to be in force by operation of Section 32(3) of the Ordinance.

The Court cannot disregard the cumulative effect of these circumstances. The existence of a specific statutory remedy, prior judicial determinations, the delay in invoking writ jurisdiction, and the subsequent expiry of the impugned caveats are all material considerations in determining whether to grant discretionary relief.

In my view, the Petitioners have failed to establish sufficient grounds warranting the intervention of this Court by way of *certiorari*, particularly in circumstances where an appropriate statutory remedy is available before the District Court.

For the foregoing reasons, I decline to exercise the discretionary writ jurisdiction of this Court.

Accordingly, the application is dismissed.

JUDGE OF THE COURT OF APPEAL

B. Sasi Mahendran, J

I agree.

JUDGE OF THE COURT OF APPEAL